



File No.: EXP202314066

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by B.B.B. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated June 6, 2024, and based on the following

FACTS

FIRST: On June 6, 2024, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202314066, in which it was agreed to uphold the claim for the exercise of rights made by B.B.B. against A.A.A.

SECOND: The resolution now being appealed was duly notified to the appellant on June 17, 2024, as evidenced by the acknowledgment of receipt in the file.

THIRD: The appellant has submitted a recourse for reconsideration to this Spanish Agency for Data Protection, in which they state, in summary, that "(...) This party expresses its agreement and does not contradict or refute the pronouncement of the resolution we are appealing regarding its content; however, we consider that regardless of the acknowledgment of the infringement by Corazón Contento S.L. of the provisions of Article 15 of the GDPR (right of access of the data subject), the resulting resolution is incomplete or insufficient, tainted by an omission of incongruence, as it does not resolve the infringement reported by this party regarding the improper communication and transfer of personal data related to the health of the undersigned by A.A.A."

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

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2/4

II

Response to the allegations presented

Regarding the statements made by the appellant, it should be noted that, as already indicated in the resolution now being appealed, "The rights procedure is instructed as a result of the lack of attention to some of the rights regulated in the data protection regulations. Therefore, in this case, only the facts related to the exercise of these rights will be analyzed and evaluated, excluding the rest of the issues raised by the parties."

In this sense, the existence of an omission of incongruence in the appealed resolution cannot be considered, as the claimant indicated in their complaint that their medical history was not provided by the defendant, despite being obliged to do so under current regulations. To effectively exercise this right, a procedure is provided for in the first paragraph of Article 64, which begins with an admission agreement and which, upon confirmation of the violation of their right of access, may conclude with its acknowledgment, as occurred in this case.

Following these premises, the claim was upheld, requiring the defendant to send the claimant a certification addressing the requested right within 15 business days following the resolution, as stated in the dispositive part of the appealed resolution.

Regarding the appellant's statements that the reported infringement concerning the improper

communication and transfer of personal data is not resolved, the documentation in the file has been re-examined, and no substantiated indications of unauthorized access to the Medical History have been provided. The hiring of a third party for the documentary management of the Medical History is enabled under Article 28 of the RGPD, and no indications have been provided that suggest a possible violation of data protection regulations on this matter.

It should be noted that Administrative Sanctioning Law, due to its specialty, applies, with some nuances but without exceptions, the guiding principles of criminal law, resulting in the clear full effectiveness of the principle of presumption of innocence. Not in vain, Article 53.2 b) of the LPACAP recognizes the right of presumed responsible parties to "the presumption of non-existence of administrative responsibility until proven otherwise."

Well, the Constitutional Court, in Judgment 76/1990, considers that the right to the presumption of innocence entails "that the sanction is based on acts or evidentiary means that incriminate the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the results of the evidence presented, freely evaluated by the sanctioning body, must result in an acquittal."

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3/4

In short, the application of the principle of presumption of innocence prevents the imposition of an administrative infringement when there has not been obtained and verified the existence of evidence supporting the facts that motivate this imputation.

III

Conclusion

Having examined the appeal for reconsideration submitted by the interested party, it does not provide new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution, therefore it is appropriate to agree to its dismissal.

IV

Late Resolution

Due to operational reasons of the administrative body, which are not attributable to the appealing party, as of the date of this document, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

According to the provisions of Article 24 of the LPACAP, the meaning of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nevertheless, and despite the time that has passed, the Administration is obliged to issue an express resolution and to notify it in all procedures, regardless of their initiation form, as provided in Article 21.1 of the aforementioned LPACAP.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by B.B.B. against the Resolution of this Spanish Agency for Data Protection issued on June 6, 2024, in file EXP202314066.

SECOND: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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4/4

Against this resolution, which concludes the administrative route, an administrative contentious appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of the aforementioned legal text.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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